



Fees and Refunds Policy and Associated Procedures

1. Purpose of the Policy

This policy and associated procedures outline Australian Polytechnic College (APC)'s approach to managing student fees and refunds in a transparent, fair, and compliant manner.

The policy includes requirements for:

- tuition fee collection
- payment scheduling and receipting
- refund calculations and processing
- management of student and provider default events
- refund decision communication and appeals

This policy and associated procedures meet the requirements of the:

- Education Services for Overseas Students Act 2000 (ESOS Act)
- National Code of Practice for Providers of Education and Training to Overseas Students 2018 (National Code 2018)
- Education Services for Overseas Students (Calculation of Refund) Instrument 2024 (Refund Instrument), including Section 10 and Item 10(4)
- Tuition Protection Service (TPS) obligations

This policy applies to all students studying under APC's CRICOS registration, including ELICOS and VET courses.

2. Policy Statement

2.1 Fee Information and Written Agreements

Information about course fees, payment plans, and refund conditions is provided to students prior to enrolment.

International students are issued with a written agreement (Offer Letter / Student Agreement) that contains:

- course details and start/end dates
- total tuition fees and study periods
- non-tuition fees (if applicable)
- refund conditions
- complaints and appeals information

APC manages prepaid tuition fees in accordance with ESOS requirements.

Where a refund is payable, APC processes refunds within legislated timeframes.

APC refunds the unused portion of tuition fees in applicable circumstances, including where required under the Refund Instrument.

3. Types of Fees

Mondairs Pty Ltd, T/A Australian Polytechnic College (Melbourne)

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3.1 Tuition Fees

Tuition fees are fees for delivery and assessment of the course and include:

- teaching services
- learning resources
- academic support services

3.2 Non-Tuition Fees

Non-tuition fees may include (but are not limited to):

- enrolment/application fees
- materials/resource fees
- CoE re-issue fees
- administration fees
- reassessment fees
- document re-issue fees

Unless required by law, non-tuition fees are generally non-refundable.

4. Fee Protection

APC ensures overseas student fees are protected through:

- maintaining sufficient financial capacity to refund unspent tuition fees where required; and
- membership of the Tuition Protection Service (TPS).

5. Payments

- Fees must be paid in accordance with the invoice and agreed payment schedule.
- APC issues payment receipts and maintains financial records.
- Where fees become overdue, APC follows a structured warning process prior to any cancellation or reporting actions.

6. Refunds (International Students – CRICOS / ELICOS / VET)

6.1 General ESOS Principle

Refunds for international students are assessed under:

- the student's written agreement; and
- the Refund Instrument.

Where a refund is required by ESOS legislation, APC will apply the Refund Instrument, even where the written agreement differs.

6.2 Refund Assessment and Outcome Timeframes

APC will:

- acknowledge refund applications promptly; and
- provide written outcomes once eligibility is assessed and payments verified.

6.3 Key Refund Categories

Refunds may be payable where:

- APC defaults (provider default)
- APC cancels a course
- a student withdraws prior to commencement
- a student visa is refused (before or after commencement)

6.4 Provider Default

Provider default occurs where APC:

- does not commence a course on the agreed start date; or
- ceases delivery before the course is completed.

In provider default situations, APC will:

- offer an alternative course at no extra cost; or
- refund unused tuition fees in accordance with ESOS legislation.

6.5 Student Default

Student default may occur where a student:

- does not commence the course;
- withdraws before or after commencement;
- fails to pay fees;
- breaches visa conditions; or
- is excluded due to misconduct.

Refund eligibility is assessed based on timing, services delivered, and applicable legislation.

6.6 Visa Refused – Before Course Commencement

Where a visa is refused before commencement, APC refunds prepaid tuition fees in accordance with the Refund Instrument, less the lesser of:

- 5% of prepaid tuition fees; or
- AUD \$500

Non-tuition fees are not refundable unless required by law.

6.7 Visa Refused – After Course Commencement

(Refund Instrument – Item 10(4))

If a student visa is refused after course commencement, APC calculates refunds for unused prepaid tuition fees in accordance with Item 10(4) of the Refund Instrument.

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Refund Formula:

Refund amount = Weekly tuition fee × Weeks in the default period

Where:

Weekly tuition fee = (Total tuition fees ÷ number of days in the course) × 7
(rounded up to the nearest whole dollar)

Weeks in default period = Days from default day to end of paid period ÷ 7
(rounded up)

Default day = date of visa refusal.

Only unused tuition fees are refundable.

Non-tuition fees (e.g. enrolment, materials) are not refundable unless required by law.

7. Refund Payment Method

Refunds are paid to the student or original payer, as applicable.

Payments are processed via bank transfer.

External bank and currency charges may be deducted.

8. Complaints and Appeals (Refund Decisions)

Students may lodge complaints or appeals regarding refund outcomes through APC's Complaints and Appeals Policy.

If unresolved, students may access external bodies, including the Overseas Students Ombudsman.

9. Records and Continuous Improvement

APC maintains records of:

- written agreements
- payment receipts
- refund applications
- withdrawal forms
- refund calculations
- outcome letters

Refund practices are reviewed as part of APC's continuous improvement framework.

10. Responsibilities

Principal Executive Officer (PEO)**

Responsible for:

- approving refunds where required

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- ensuring ESOS compliance
- approving policy updates

Admissions / Student Services

Responsible for:

- issuing withdrawal/refund forms
- collecting evidence
- assessing applications
- maintaining student records

Finance / Accounts

Responsible for:

- confirming payments
- processing refunds
- preparing reconciliations

11. Related Forms and Documents

- Refund Application Form
- Withdrawal Form
- Written Agreement / Offer Letter
- Payment Receipt Template
- Complaints and Appeals Form
- Refund Calculation Worksheet

Fees and Refunds Procedures

1. Provide Fee Information

1.1 Pre-enrolment disclosure

APC will provide students with:

- course fees and payment schedule
- refund conditions
- payment methods
- invoicing arrangements
- receipt issuance process

1.2 Written Agreement

Prior to accepting tuition fees, APC will ensure:

- the student receives the Written Agreement (Offer Letter / Student Agreement);
- the student signs or accepts the agreement; and
- APC retains the signed agreement on file.

2. Record Payments

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2.1 Receipting

APC will issue an official receipt for each payment received.

2.2 Student Management System recording

All payments, credits, discounts, and adjustments will be recorded in APC's Student Management System.

2.3 Record retention

APC will maintain:

- payment records;
- invoices;
- receipts; and
- written agreements

in accordance with legislative retention requirements.

3. Refund Application Process

3.1 Application requirements

Students requesting a refund must submit:

- a Course Withdrawal Request (where an active CoE exists); and
- a Refund Application Form; and
- supporting evidence (e.g., visa refusal notice, compassionate or compelling circumstances where applicable).

3.2 Withdrawal validation requirement (PRISMS compliance)

Where the student holds an active Confirmation of Enrolment (CoE), APC must first validate the enrolment cessation reason before assessing refund eligibility.

This is required to ensure APC can:

- correctly update enrolment status; and
- meet ESOS and National Code reporting obligations through PRISMS.

This withdrawal validation step is procedural only and does not automatically classify the matter as a voluntary withdrawal.

4. Processing Withdrawal Requests

4.1 Form issuance

APC will provide a Withdrawal/Application to Withdraw form upon request.

4.2 Assessment

APC will assess withdrawal applications in line with National Code requirements, including PRISMS reporting obligations.

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4.3 Reason validation

Admissions will confirm the applicable cessation reason, such as:

- visa refusal
- compassionate or compelling circumstances
- course transfer
- personal reasons
- non-payment
- misconduct

4.4 Enrolment verification

APC will confirm:

- enrolment status;
- course commencement date;
- study periods undertaken; and
- services delivered.

5. Processing Refund Applications

5.1 Form issuance

APC will provide a Refund Application Form and advise required supporting documentation.

5.2 Documentation verification

APC will confirm that:

- the form is complete;
- supporting documents are provided; and
- visa refusal evidence is supplied where relevant.

5.3 Payment verification

APC will confirm:

- tuition fees received;
- non-tuition fees received;
- discounts or credits applied; and
- the study period to which payments relate.

5.4 Refund assessment framework

Refund applications will be assessed under:

- the Written Agreement; and
- ESOS Refund Instrument requirements (where applicable).

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Where ESOS legislation requires a refund, the Refund Instrument prevails.

6. Refund Calculation – Visa Refused After Commencement

(Refund Instrument Item 10(4))

6.1 Calculation method

Where applicable, APC will calculate refunds using the Refund Instrument Item 10(4) formula:

Refund amount = Weekly tuition fee × Weeks in default period

6.2 Weekly tuition fee calculation

Weekly tuition fee is calculated as:

$(\text{Total tuition fees} \div \text{number of calendar days in the course}) \times 7$

Rounded up to the nearest whole dollar.

6.3 Default period calculation

Weeks in default period is calculated as:

$\text{Number of calendar days from default day to end of paid study period} \div 7$

Rounded up to the nearest whole week.

6.4 Default day

The default day is the date of visa refusal notification.

6.5 Non-tuition fees

Non-tuition fees (e.g., enrolment fees, materials fees) are not refundable unless required by law.

6.6 Recordkeeping

Refund calculations will be documented and retained on the student file.

7. Issuing Refund Outcomes

7.1 Written notification

APC will notify the student in writing of:

- refund outcome (approved / not approved);
- refund amount and calculation method (if applicable);
- payment processing timeframe; and
- complaints and appeals options.

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8. Payment of Refunds

8.1 Provider default refunds

Refunds arising from provider default will be paid within 14 working days of the default event.

8.2 Student default refunds

Refunds arising from student default (where payable) will be paid within 14 working days.

8.3 Processing commencement date

Refund processing timeframes commence from the date APC receives:

- a completed Refund Application Form; and
- all required supporting documentation.

Where an application is incomplete, processing timeframes commence once all required documents are received.

Version Control & Modifications Table

Version	Date	Changes	Name
v1.1	February 2026	ESOS + National Code alignment	Nelson Santiago